17. Meanwhile, the 2010 Action against 176 NSL continued through disclosure and discovery examinations. The applicants discovered Mr. Boucher on April 9, 2013. Mr. Boucher deposed that at that time, he was no longer the president of "AFL", and that Mr. Boudreau, his business partner, was.[10]

18. On October 22, 2015, the applicants received correspondence from Ralph Ripley, counsel for 325 NSL, which was carrying on business as AFL Tank Manufacturing at the time.[11] Mr. Ripley's letter discussed the incorporation of 325 NSL in 2010 and the fact that 176 NSL no longer bore the name "AFL Tank Manufacturing Limited" but that 325 NSL then did. This correspondence attached printouts of the corporate profiles for 325 NSL and 176 NSL. At the time, both Mr. Boudreau and Mr. Boucher were directors and officers of 325 NSL.

19. The applicants screen-captured the corporate profile of Arichat Metal on December 16, 2016 from the Registry of Joint Stock Companies website.[12] This profile indicated that the company formerly known as 3250450 Nova Scotia Limited changed its name a second time from AFL Tank Manufacturing Limited to Arichat Metal Fabrication Limited. The 2016 corporate profile also disclosed that Mr. Boudreau was its sole director and officer, having removed Mr. Boucher on or around December 2, 2015.

20. On December 20, 2016, Ms. Wood emailed Scott Johnson, the insurance adjuster for the applicants.[13] In that email, Ms. Wood informed Mr. Johnson that the applicants had perused the Registry of Joint Stock Companies and that they were "searching the public registries for any information" regarding AFL/176 NSL's assets and liabilities. She further suggested that Mr. Boucher and AFL/176 NSL was "judgment proof".

21. On April 18, 2018, Ms. Wood and Mr. Johnson spoke on the phone whereby Ms. Wood advised Mr. Johnson that Arichat Metal had, in fact, purchased the assets of 176 NSL.[14] She further advised him that the company formerly known as AFL, and now called 176 NSL, may not have any assets on which to recover, while Arichat Metal was a going concern.

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10 Corey Affidavit, Exhibit "A", at para 22 of Waugh Affidavit.
11 Corey Affidavit, Exhibit "C".
12 Corey Affidavit, Exhibit "B".
13 Affidavit of Brittany Durnford, sworn July 10, 2023, Exhibit "A".
14 Johnson Affidavit, para 16.